

26VECV00152 26VECV00152

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26VECV00152 ARGUELLO V WEISBERG

[TENTATIVE] ORDER:

Defendants David Weisberg and Nina Weisberg's Motion to Reclassify is DENIED.

Defendants David Weisberg and Nina Weisberg's Motion to Quash Subpoena, and Protective Order Limiting Discovery is DENIED IN PART and GRANTED IN PART as follows.

The request for a protective order limiting discovery is DENIED.

The request to quash the subpoena is DENIED as to Request for Production Nos. 6, 11, 16, 17, and 23. However, the Court modifies Nos. 11, 16, 17, and 23 to only seek production of the following business records: "Copies of all licenses you possessed that authorized the repairs listed in Invoice #25-67" (Request No. 11); "Copies of all your written communications with David Weisberg and Nina Weisberg regarding the repairs in Invoice #25-67" (Request Nos. 16 and 17); and "All videos and pictures taken of 24907 Marbella Court, Calabasas, CA 91302, in connection with the repairs listed in Invoice #25-67" (Request No. 23).

The request to quash all other Requests for Production is GRANTED.

Introduction

Defendants David Weisberg and Nina Weisberg (collectively, Defendants) moved to reclassify this action to a limited action. Defendants separately moved to quash the subpoena that Plaintiff Giannella Arguello (Plaintiff) issued to non-party Ksar Construction, and for a protective order limiting Plaintiff's discovery requests in general. Plaintiff opposed the motions, and Defendants filed their replies.

Motion to Reclassify

Plaintiff filed this action alleging two causes of action for breach of written contract and violation of Civil Code section 1950.5 (Section 1950.5). Both claims allege that Plaintiff's former landlords, Defendants, breached the parties' lease by, inter alia, (1) failing to give Plaintiff an itemized statement specifying deductions from her \$25,800 security deposit, and (2) refusing to

return the security deposit within 21-day period of Plaintiff moving out of Defendants' property. (See Civ. Code, § 1950.5, subd. (h)(1) ["No later than 21 calendar days after the tenant has vacated the premises, ... the landlord shall furnish the tenant, a copy of an itemized statement indicating the basis for, and the amount of, any security received and the disposition of the security, and shall return any remaining portion of the security to the tenant ..."]; id. at subd. (m) ["The bad faith claim or retention by a landlord ... of the security or any portion thereof in violation of this section, ... may subject the landlord ... to statutory damages of up to twice the amount of the security, in addition to actual damages"].)

Defendants move to reclassify this case as a limited civil case, arguing that the amount in controversy is below the jurisdictional amount of \$35,000 for unlimited civil actions because (1) Defendants only deducted \$12,250 from Plaintiff's security deposit to cover Plaintiff's damage of their property, and, (2) although Section 1950.5 allows a tenant to recover statutory damages up to twice the amount of the security, Plaintiff's bad allegations lack evidence.

Defendants' arguments are unpersuasive. A court cannot reclassify a case "as limited (and thus keep the matter in the unlimited civil court) unless it appears to a legal certainty that the plaintiff's damages will necessarily be less than [\$35,000]." (Ytuarte v. Superior Court (2005) 129 Cal.App.4th 266, p. 276, 277.) That "standard of 'legal certainty' is not met when it appears a verdict within the unlimited court's jurisdiction is 'possible.'" (Ibid.) "Whether an action qualifies as a limited or unlimited civil action is determined initially from the prayer or demand for relief in the plaintiff's complaint." (Id. at p. 274.) Here, the Complaint alleges that Defendants have not returned any portion of Plaintiff's \$25,800 security deposit. The Complaint also alleges that Defendants withheld that security deposit in bad faith in violation of Section 1950.5, which allows statutory damages of up to twice the amount of the security deposit. Given those facts, this action was correctly filed as an unlimited civil case. Defendants' argument that Plaintiff's bad faith allegations are unsupported by any evidence is irrelevant for this motion and fails to prove it is legally certain that Plaintiff's damages will be less than \$35,000.

Therefore, the motion to reclassify is DENIED.

Motion to Quash Subpoena and Protective Order

Defendants move for an order quashing the deposition subpoena for production of business records that Plaintiff issued on non-party Ksar Construction Inc. (Motion, Ex. H – a copy of the subpoena.) The subpoena contained 23 requests for production of documents (RFPs). After the parties met and conferred as ordered by the Court, Plaintiff withdrew most of the RFPs, leaving only the six (6) RPDs discussed below.

RFP No. 6: "All documents relating to Invoice #25-67." The Court finds that RFP No. 6 is reasonably calculated to lead to admissible evidence. Therefore, the request to quash that request is DENIED.

RFP No. 11: "All documents evidencing, memorializing, or establishing that Ksar Construction, Inc. had an active construction license on June 12, 2025." Plaintiff argues that the request seeks relevant documents because if the company was not licensed at the time it allegedly repaired the damages that Plaintiff allegedly caused, then Plaintiff was not financially responsible for paying \$5,750 for the alleged damages. "If a subpoena requires ... the production of books, documents, electronically stored information, or other things ..., the court, upon motion ..., may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).) The Court finds that Plaintiff has shown Ksar Construction, Inc.'s licenses for the repairs in Invoice #25-67 are relevant. However, RFP No. 11 is overbroad. Therefore, the request to quash RFP No. 11 is DENIED, but the Court modifies the request to only seek the following business records: "Copies of all licenses you possessed that allowed you to do the repairs listed in Invoice #25-67."

RFP No. 12: "All documents relating to any disciplinary action issued by the [California License or other government agency against Ksar Construction, Inc., including, but not limited to, the suspension of the construction license for Ksar Construction, Inc.]" The Court finds that this request is not calculated to lead to admissible evidence and the Court's modification of RFP No. 12 is already sufficient. Therefore, the request to quash RFP No. 12 is GRANTED.

RFP Nos. 16 and 17 seek production of all documents relating to communications between Defendants and the non-party. Only those communications concerning the repairs in Invoice #25-67 are relevant. Therefore, the request to quash RFP Nos. 16 and 17 is DENIED, but the Court modifies the requests to seek only the following: "Copies of all your written communications with David Weisberg and Nina Weisberg regarding the repairs in Invoice #25-67."

RFP No. 23: All pictures and videos taken at 24907 Marbella Court, Calabasas, CA 91302. The Court finds that only those pictures and videos concerning the repairs in Invoice #25-67 are relevant. Therefore, the request to quash RFP No. 23 is DENIED, but the Court modifies the request to only seek the following business records: "All videos and pictures taken of 24907 Marbella Court, Calabasas, CA 91302, in connection with the repairs listed in Invoice #25-67."

Defendants also move for a protective order limiting Plaintiff's discovery requests, arguing that Plaintiff has propounded hundreds of discovery requests over the course of this litigation. The Court declines to issue a blanket protective order restricting Plaintiff's statutory right to discovery. Defendants must file a separate and properly noticed motion for each set of discovery that they seek a protective order. Therefore, the request for a protective order is DENIED.

In her opposition, Plaintiff moves for sanctions of \$6,217.95 against Defendants, arguing that they filed the discovery motion without substantial justification. The Court has found some RFPs to be overly broad. Therefore, the Court disagrees that Defendants filed the motion without substantial justification. As such, Plaintiff's request for sanctions is DENIED.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.